

TENTATIVE RULING

Case: **Interstate Management Company, LLC v. Presidioco Holdings, LLC**
Case No. CV2025-1172

Hearing Date: **April 23, 2026** **Department Fourteen** **9:00 a.m.**

The verified application to appear as counsel pro hac vice of Shane P. Simon is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 9.40.) The applicant did not serve the application and notice of hearing by mail on all parties who have appeared in the case. (Cal. Rules of Court, rule 9.40(c)(1); Code Civ. Proc., § 1013a.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Lewis v. Swartz**
 Case No. CV2023-1829

Hearing Date: **April 23, 2026** **Department Eleven** **9:00 a.m.**

Defendant Cemex Construction Materials Pacific, LLC’s motion to compel further responses to requests for production of documents, set five is **DENIED AS MOOT**. (Code Civ. Proc., § 2031.310.) On April 7, 2026, plaintiff Ronald Lewis served supplemental responses to requests for production of documents, set five, “along with a concurrent supplemental production.” (Markey decl., ¶ 2, Exhibit A; Liu decl. ISO reply, ¶ 3.) Therefore, there is nothing remaining to compel. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”].)

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, subd. (h), 2023.010, subds. (e) & (i), 2023.020, 2023.030, subd. (a), 2023.050, subd. (a)(3).) First, plaintiff did not unsuccessfully oppose this motion to compel further responses. (Code Civ. Proc., § 2031.310, subd. (h).) Second, as the Court is denying defendant’s motion as moot, the Court is not determining whether plaintiff made unmeritorious objections to discovery. (Code Civ. Proc., § 2023.010, subd. (e).) Finally, plaintiff did not fail to meet and confer in good faith. (Code Civ. Proc., §§ 2023.050, subd. (a)(3), 2023.010, subd. (i), 2023.020; Liu decl., ¶¶ 10-13.) Rather, defendant did not adequately meet and confer before filing this motion. (See Code Civ. Proc., § 2016.040 [requiring a meet and confer declaration to show “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion”]; Liu decl., ¶¶ 10-13, Exhibits F & G.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.